



Maritime &
Coastguard
Agency

Guidance

Annex 2 - General Exemption

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Spring Place
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GENERAL EXEMPTION

The Secretary of State, in exercise of his powers under Section 85(6) of the Merchant Shipping Act 1995 together with the exemption powers¹ in each of the appropriate regulations hereby exempts:

Ships of Class **IX(A)**

from the requirements of such regulations as applicable to it being a ship of Class IX(A). This exemption shall have immediate effect and only until such time as the appropriate parts of the regulations² are revoked, or this exemption is either amended or revoked.

This is on condition that:

- (a) the vessel does not proceed to sea³

AND

- (b) the vessel meets the requirements for carriage of life saving appliances and fire fighting equipment, as laid down in:
- the MCA Alternative Standards (Annex 1);
 - the Thames Freight Standard (Edition 1);
 - the Hire Boat Code (Edition 2);
 - The Workboat Code (Edition 2)
 - the Inland Waters Small Passenger Boat Code (September 2007); or
 - another appropriate and suitable industry standard that is approved by the MCA.

AND

- (c) when required by the relevant waterway authority, the vessel has been issued with an appropriate Certificate of Inspection pertaining to such an approved standard.

Dated this day 9 November 2023

Katy Ware
Director – UK Maritime Services

¹ SI 2020 No. 0501 – The Merchant Shipping (Life-Saving Appliances and Arrangements) Regulations 2020, Regulation 8;
SI 1998 No. 1011 – The Merchant Shipping (Fire Protection - Small Ships) Regulations 1998, Regulation 47;

SI 2023 No. 568 - The Merchant Shipping (Fire Protection) Regulations 2023, Regulation 10;

² SI 2020 No.0501 - The Merchant Shipping (Life-Saving Appliances and Arrangements) Regulations 2020, Regulations 12, 13, 18, 19

¹ SI 2020 No. 0501 – The Merchant Shipping (Life-Saving Appliances and Arrangements) Regulations 2020, Regulation 8;
SI 1998 No. 1011 – The Merchant Shipping (Fire Protection - Small Ships) Regulations 1998, Regulation 47;
SI 2023 No. 568 - The Merchant Shipping (Fire Protection) Regulations 2023, Regulation 10;

² SI 2020 No.0501 - The Merchant Shipping (Life-Saving Appliances and Arrangements) Regulations 2020, Regulations 12, 13, 18, 19

SI 1998 No. 1011 - The Merchant Shipping (Fire Protection - Small Ships) Regulations 1998, Regulations 1, 2, 21.

SI 2023 No. 568 – The Merchant Shipping (Fire Protection) Regulations 2023, Regulations 1, 3.

³ Beyond the boundaries of Categorised Waters as defined and listed in Merchant Shipping Notice MSN 1837 (M), as amended.



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